

**IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA**

Marc Moszkowski,
Appellant

Case 1D2025-2912
L.T. No.: 2018 CA 000543

v.

Deepgulf, Inc. and Toke Oil and
Gas, S.A.,
Appellees

**ON APPEAL FROM THE CIRCUIT COURT,
FIRST JUDICIAL CIRCUIT, IN AND FOR
ESCAMBIA COUNTY, FLORIDA**

**APPELLEES' RESPONSE TO APPELLANT'S
MOTION FOR REHEARING**

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PRELIMINARY STATEMENT

Appellant, Marc Moszkowski, was the defendant in the trial court. This Response will refer to Appellant as such.

Appellees, Deepgulf, Inc., and Toke Oil and Gas, S.A., were the plaintiffs below. This Response will refer to Appellees as such.

The record on appeal consists of one volume, which will be referenced as the "Record on Appeal." Citations to the Record on Appeal will be "R.," followed by any appropriate page number, all in parentheses.

PROCEDURAL HISTORY

In brief, this matter began in 2018 as a lawsuit in Florida state court (R. 36–39) before it was removed to federal court that same year. (R. 140–42). In 2021, and in accordance with an order from the United States Eleventh Circuit Court of Appeals, the case was remanded to Florida state court. (R. 143).

In the state court proceedings, Appellant failed to participate in mediation, failed to appear as ordered for the pretrial conference, and failed to appear at the hearing on an order to show cause. (R. 3653). Following the hearing on the order to show cause, the trial court

struck Appellant's pleadings. (R. 3653). Appellant also failed to appear for the bench trial. (R. 4225).

Appellant included in the Record on Appeal neither a transcript of the bench trial nor a prepared statement of the evidence under Fla. R. App. P. 9.200(b)(5). Appellant's initial brief included multiple erroneous citations to cases that do not exist or addressed issues unrelated to Appellant's argument.

LAW AND ARGUMENT

I. APPELLANT HAS NOT SHOWN SUFFICIENT CAUSE FOR REHEARING OR A WRITTEN OPINION UNDER RULE 9.330.

First, Appellant has not demonstrated any reason under Rule 9.330 why he should be granted a rehearing. "A motion for rehearing shall state with particularity the points of law or fact that, in the opinion of the movant, the court has overlooked or misapprehended in its order or decision." Fla. R. App. P. 9.330(a)(2)(A). Rather than pointing to an issue that the Court "overlooked or misapprehended," Appellant merely reargues two of his previous positions. For reasons that will be argued *infra*, the Court rightly rejected Appellant's arguments as meritless. See *Gainesville Coca-Cola v. Young*, 632 So. 2d 83, 84 (Fla. 1st DCA 1993) ("The Motion for Rehearing and

Clarification consists of eight pages which restate the case law and facts contained in appellee's brief. We deny this motion as improper reargument.”).

Second, Appellant has similarly failed to demonstrate any basis under Rule 9.330 why a written opinion is warranted. Appellant argues that a written opinion would make more convenient an appeal to the Florida Supreme Court, but he does not argue “a legitimate basis for supreme court review.” Fla. R. App. P. 9.330(a)(2)(D)(i). Nor does Appellant identify “an apparent deviation from prior precedent.” Fla. R. App. P. 9.330(a)(2)(D)(ii). Nor does Appellant argue that “guidance to the parties or lower tribunal” is required. Fla. R. App. P. 9.330(a)(2)(D)(iii).

Consequently, no part of Appellant’s motion should be granted. Rather, this motion is a continuation of Appellant’s ongoing abuse of the judicial process and could warrant sanctions. *See Lawyers Title Ins. Corp. v. Reitzes*, 631 So. 2d 1101, 1102 (Fla. 4th DCA 1994) (“Accordingly, as a sanction for this flagrant violation of Florida Rule of Appellate Procedure 9.330(a), we impose a fine in the amount of \$1250, to be paid within 30 days of this opinion.”).

II. APPELLANT'S CLAIMS ARE WITHOUT MERIT.

First, Appellant reasserts his argument that the judgment against him for civil theft is barred by the statute of limitations. Even assuming *arguendo* that this would have been a meritorious affirmative defense, it cannot avail Appellant because the trial court struck Appellant's affirmative defenses with his pleadings. "The defense of 'statute of limitations' is one of the enumerated affirmative defenses under Florida Rule of Civil Procedure 1.110(d), which must be affirmatively set forth in a pleading or it is deemed waived." *Deer Brooke S. Homeowners Ass'n of Polk Cnty., Inc. v. Battles*, 304 So. 3d 40, 42 (Fla. 2d DCA 2020). Appellant cannot raise the affirmative defense on appeal when it was struck from his pleadings.

Second, Appellant misunderstands the issue regarding the trial court's findings of fact. Appellant cites to findings of the federal trial court that contradict the state trial court's findings of fact, but the federal courts had no jurisdiction over the case, and their findings are of no legal consequence. (R. 143). The fatal issue for Appellant is that he did not "ensure that an adequate record to resolve the issues raised on appeal [was] provided to the appellate court." *Cyrus v. Cyrus*, 324 So. 3d at 591 (citing *Morgan v. Pake*, 611 So. 2d 1315,

1316 (Fla. 1st DCA 1993); Fla. R. App. P. 9.200(e)). If there is no transcript of the trial, and the parties do not file a stipulated statement of the evidence, then “the sufficiency of any testamentary evidence to support the trial court’s findings on underlying factual issues is not before [the Court] for review.” *Baxter v. Baxter*, 397 So. 3d 826, 828 (Fla. 1st DCA 2024).

For all these reasons, Appellees request that the motion be denied.

Respectfully submitted on October 8, 2026.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was served via email to: Marc M. Moszkowski, *pro se*, at m.moszkowski@deepgulf.net on October 8, 2026.

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CERTIFICATE OF COMPLIANCE

I hereby certify that this Response complies with the requirements of Fla. R. App. P. 9.045, 9.300, and 9.330. This Response is written in Bookman Old Style 14-point font. Although the Rules do not impose a word limit on this filing, the word-processing application used to prepare this Response tallies the word count at 1183 words.

/s/Braden K. Ball, Jr. _____

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